



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 8, 2020

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 201805247 regarding Police Officer Andrew Cummings, Tax No. [REDACTED]
(DADS No. 2019-20258)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this case, and has determined that Police Officer Cummings will receive no disciplinary action for his actions in this matter. Police Officer Cummings was engaged in a vehicle stop with his partner and observed that the vehicle operator was failing to comply with his partner's directions. Body Worn Camera video clearly shows that the vehicle operator was asked over a dozen times to provide his New York State Driver License by Officer Cummings' partner, without achieving compliance. His partner then demanded several times that the vehicle operator exit the vehicle, and again failed to gain compliance. The vehicle operator continued to refuse to comply with these directions, and Officer Cummings, who was located on the opposite side of the stopped vehicle, chose to draw his Taser to both ensure his partner's safety and to gain compliance from the uncooperative vehicle operator. This tactic worked as intended, as the vehicle operator immediately began to comply with Officer Cummings' partner's directions, after having turned to see Officer Cummings pointing the Taser in his direction.

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Website: <http://nyc.gov/nypd>

As this reasonable use of the Taser successfully diffused an otherwise tense situation, no disciplinary action is warranted.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Cecil Wade', written over the printed name.

Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office